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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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No. 1901/9 - TUESDAY, FEBRUARY 10, 2015

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

SRI LANKA COUNCIL OF ARCHAEOLOGISTS ACT No. 04 OF 1992 (INCORPORATED)

THE set of Rules made under the title Sri Lanka Council of Archaeologists published in the Gazette Extraordinary No. 854/6 of Tuesday, 17th January, 1995 under Section 06(01) of the Council of Archaeologists of Sri Lanka Act No. 04 of 1992 is hereby repealed as per order of the Council and the new Rules prepared under the title The Sri Lanka Council of Archaeologists are enacted.

By order of the Council

Professor GAMINI ADHIKARI,
President,
Board of Governors,
Sri Lanka Council of Archaeologists

Department of Archaeology,
Colombo 07,
10th February 2015.

Sri Lanka Council of Archaeologists New Constitution made in terms of Section 6(1) of the Act

01. (a) Any person who has passed the qualifying examinations prescribed in Schedule Two of this Constitution or in any other examination or examinations approved by a two thirds majority of the Council as those to be completed by candidates for eligibility for enrolment as an Associate Member of the Council, shall be enrolled by the Board of Governors (hereinafter referred to as the Board) as an Associate Member.
- (b) Any person who has obtained a Post Graduate Degree in Archaeology from a recognized university or an institute and possesses two years' experience as a professional Archaeologist in a suitable state or private institute shall be enrolled by the Board as a Member of the Council.
- (c) Any person who has held membership of the Council for a period of more than ten years shall be enrolled by the Board as a Fellow Member.



02. (a) The non-incorporated membership of the Council shall consist of Honorary members, registered members and student members. They shall have voting rights for their representation.
- (b) A person who has rendered a distinguished service to the Council may be enrolled by the Board as an Honorary Member. However, not more than one Honorary Member shall be enrolled by the Council in a year and the total number of Honorary Members so enrolled shall at no time exceed ten.
- (c) Any person who has passed the qualifying examinations prescribed in Schedule 2 of this Constitution as such examinations to be completed in order to become eligible for recruitment as a registered member of the Council or who has been practically and continuously engaged in a responsible position in the field of Archaeology for at least ten years in an archaeological organization or the Department of Archaeology or any other local organization recognized as an equivalent organization by the Council shall be enrolled by the Board as a registered member.
- (d) Any person who has fulfilled the qualifications prescribed in Schedule 2 of this Constitution for enrolment as a student member or has acquired the internal qualifications recognized by the Board as equivalent qualifications shall be enrolled by the Board as a student member.
03. (a) An application for membership of any category shall be prepared and submitted in the Application Form prescribed by the Board from time to time, guaranteed by three incorporated members. If an application is submitted for enrolment as a Fellow Member, such application shall be submitted with sponsorship of two Fellow Members.
- (b) A list of Members shall be maintained by the Board.
04. A Certificate of Membership prepared in the format and design prescribed from time to time by the Council shall be issued to each Member by the Board affixed with the common seal of the Council. Such certificate shall remain the property of the Council and shall be returned to the Council within seven days of termination of membership if occurred due to any reason other than the death of the Member concerned.
05. If any Member, having paid all his outstanding contributions and fees, informs the Honorary Secretary in writing of his intention to resign from membership, his membership shall be terminated.
06. A member whose membership is terminated on account of resignation may be re-enrolled as a new Member by the Council to the same category of membership held by him at the time of resignation.
07. (a) Admission fees, annual subscriptions and other fees payable shall be as specified in Schedule 1 of this Constitution.
- (a) Any person decided by the Board to be enrolled in any category of membership shall pay his admission fee and the annual subscription fees for the relevant year within two months of such enrollment.
- (b) Every Member shall pay the annual subscription fee and any annual fee payable by him, if any, prior to the commencement of the current year. If such dues are not paid by the 1st of March during the year, a reminder shall be sent to the Member by the Honorary Treasurer. If the dues are not paid by the 1st of June in the current year, a notice shall be sent to the Member under registered cover by the Honorary Treasurer. If any person does not pay his outstanding dues within one month of such notice, his membership shall be terminated. Such person may be re-enrolled as a Member if the Board is convinced that there had been sufficient reasons for such non-payment of dues.
- (c) If any Member is unable to be engaged in his profession or in a productive livelihood due to old age, illness, incapacity or any other valid reason, the Board may, by adopting a resolution, waive such Member's contribution fully or partly.

8(a) The office bearers of the Council shall consist of the following:

- i. Honorary President
- ii. Honorary immediate past President
- iii. Honorary Senior Vice President
- iv. Honorary Vice President
- v. Honorary Co-Secretaries (Two)
- vi. Honorary Treasurer
- vii. Honorary Assistant Treasurer

(b) The Committee of the Council shall consist of eleven (11) Members.

The Board of Governors shall consist of the aforesaid Members and the Committee Members.

- (c) Only Fellow Members shall be eligible for the offices of Honorary President, Honorary Senior Vice President and Honorary Vice President.
 - (d) The Honorary President shall be the person who has held the office of Senior Honorary Vice President at the end of the previous year. Although such a member may not hold the office of President on more than two consecutive terms, he may be re-elected to the same office after the expiry of two terms of the Board.
 - (e) Only an incorporated Member who has served on the Board for at least two terms of office shall be eligible for election as the Honorary Senior Vice President. Although such a Member may not hold the office of Honorary Senior Vice President on more than two consecutive terms, he may be re-elected to the same office after the expiry of one term of office of the Board.
 - (f) Only an incorporated Member who has served on the Board for at least one term of office shall be eligible for election as the Honorary Vice President. Although such a Member may not hold the office of Honorary Vice President on more than two consecutive terms, he may be re-elected to the same office after the lapse of one term of office of the Board following expiry of the term of office.
 - (g) The Honorary immediate past President shall be the person who has held the office of President at the end of the previous term of office.
 - (h) Only an incorporated Member who has served on the Board at least one term of office shall be eligible for election as Honorary Secretary, Honorary Co-Secretary, Honorary Treasurer or Honorary Assistant Treasurer. Although such Member may not hold an office previously held by him for more than two consecutive terms, he may be re-elected after the expiry of one term of office of the Board.
 - (i) Members selected to the offices of Honorary President, Honorary immediate past President, Honorary Senior Vice President, Honorary Vice President, Honorary Co-Secretaries, Honorary Treasurer and Honorary Assistant Treasurer of the Board may hold the offices to which they are elected on two consecutive terms without a voting.
 - (j) One term of office of the Board means the period between two annual general meetings.
9. (a) Only a Fellow Member shall be eligible for election as President of the Board of Studies. Although such a Member may not hold such office on more than two consecutive terms, he may be elected to the same office after the expiry of one term of office of the Board.
- (b) The President of the Board of Studies shall be an ex-officio Member of the Board.

10. (a) The Board shall consist of not more than nineteen (19) Members including the office bearers and one out of them shall be the President of the Board of Studies.
(b) At least three Members of the Board shall be Associate Members and not more than three Members shall be non-incorporated Members.
11. In the election of the aforesaid office bearers and the eight Committee Members, only the incorporated Members shall be eligible for voting.
12. (a) Registered members and student members shall be eligible to elect at least one registered member and one student member respectively in order to have themselves represented at the Board.
(b) Although such members have the right to be informed of the meetings of the Board and to participate in such meetings, they shall have no voting rights. They shall not be present at any disciplinary inquiry or any discussion on any related matter and shall not participate on such occasions.
13. If the Council membership of a Board member is expired or if he informs the President or the Honorary Secretary by a registered letter of his intention to resign from office, then the term of such member shall terminate.
14. (a) In the event of the death of the Honorary President, Honorary Senior Vice President, Honorary Co-Secretary or Honorary Treasurer or the vacation of office by any of them, the Honorary Senior Vice President or Honorary Vice President or Honorary Co-Secretary or Honorary Assistant Treasurer as applicable shall fill the relevant vacancy until the Board subsequently elected assumes duties.
(b) When an internal Member of the Board dies or vacates office or when a vacancy occurs on account of the operation of Article 14(a) or any other reason, a member shall be appointed to such office by the Board.
(c) In the calculation of the period of office held by a Member for the purpose of operation of Article 8 of this Constitution, the period during which such member has held such office on account of the operation of this Constitution shall be disregarded and if he had been holding any office previously, it shall be considered as if he has been holding such office continuously during the remaining term of office of the Board as well.
15. (a) The Board shall meet at least once a month and the date of the next meeting shall be fixed, as far as possible, at the respective meetings of the Board.
(b) The Honorary Secretary shall convene an extra-ordinary meeting of the Board to consider a matter specifically informed by the President or to consider any matter specifically mentioned in a written request signed by at least six members of the Board when such a request is received by him. The date, time and venue of such meeting and the matters to be considered there at shall be intimated to all members of the Board at least 48 hours in advance.
(c) The quorum at a Board meeting shall be six members (excluding non-incorporated members).
16. (a) Any incorporated member who is eligible for election to any office other than that of the President and the immediate past President of the Board/Council may be nominated by any two non-incorporated members.
(b) Any two registered members and any two student members may nominate any registered and any student member respectively for election to the Board in terms of Article 12(a) of this Constitution.
(c) Such nominations shall be in writing and signed by the proposer and the seconder with confirmation that all amounts of annual membership fees and any other dues payable have been duly paid. Furthermore, it shall include a written statement signed by the candidate to the effect that he is eligible for election as per the relevant Rules and that he expresses his willingness to serve on the Board if elected.

- (d) Such nominations for election shall be submitted to the Honorary Secretary at least 15 days in advance.
- (e) The Board may, at its last meeting, nominate by resolution one member each for the respective offices on the Board other than that of the President and immediate past President. Such nomination shall not be valid unless the relevant candidate makes a statement signed by him, prior to being nominated or within two weeks of such nomination, to the effect that he is eligible for election as per the relevant Articles and if so elected, he would be willing to serve on the Board.
17. (a) The notice relating to the annual general meeting shall include a list of names of all candidates nominated in terms of Article 16.
- (b) No member shall be eligible to vote unless he has paid in advance the amounts of contribution due from him in respect of the current calendar year.
- (c) The first item on the Agenda of the annual general meeting shall be the election of office bearers. Voting shall be by secret ballot.
- (d) The preparation and issue of ballot papers, provision of ballot boxes and counting of votes shall be the responsibility of the Senior Vice President (elected President) and his decision on the validity of any nomination, eligibility of any candidate, the right of vote of any member etc. shall be final. He may appoint not more than two Fellow Members who are not candidates, for his assistance.
- (e) A candidate may be nominated for more than one office. However, if elected for one office, votes cast for him for any other office shall be disregarded. In the operation of this Article, the counting of votes in respect of the other offices of Senior Vice President, Vice President, Honorary Co-Secretary, Honorary Treasurer and Honorary Assistant Treasurer shall be done according to that order.
18. The Financial Year of the Council shall be from January 01 to December 31.
19. Members of the Board shall hold office from the date of the Annual General Meeting at which they are elected until the date of the Annual General Meeting at which their successors are elected.
20. (a) The Annual General Meeting of the Members of the Council shall be held before the end of March every year. The following matters shall be included in the Agenda of the Annual General Meeting:
- Election of office bearers and Committee Members of the Board
 - Adoption of the Annual Report and the audited Statement of Accounts for the previous year
 - Other matters duly informed of in advance
- (b) The date, time and venue of the Annual General Meeting shall be intimated to all the members at least ten (10) days in advance.
- (c) If the Annual General Meeting is not held before the end of March, a special General Meeting of Council members shall be convened as per Article 21 to make provisions to convene the Annual General Meeting and to conduct its proceedings.
- (d) The Board shall make arrangements to hold at least three General Meetings of Council members in addition to the Annual General Meeting.
21. (a) The Honorary Secretary shall convene a special general meeting of Council members when directed by the Honorary President to consider any matter specifically addressed to the members by the President or on receipt of a written request signed by at least fifteen incorporated members to consider any matter specifically mentioned in such request.

- (b) The date, time and venue and the nature of business of such meeting shall be intimated to all the members at least three days in advance.
22. (a) The Honorary President shall preside at all meetings of Council members. In his absence, the Honorary immediate past President or Honorary Senior Vice President or Honorary Vice President or in their absence, a Board member elected by the members present shall chair the meeting.
- (b) The quorum required for a meeting of Council members shall be one fourth of the incorporated membership. If a quorum is not present within half an hour from the appointed time of the meeting, the meeting shall be suspended and if a quorum is not present within half an hour from the time of commencement of the suspended meeting, the number present shall constitute the quorum.
- (c) Although all non-incorporated members may attend and participate at all meetings, they shall vote only in the manner specified in Article 12 of this Constitution.
23. (a) The Board shall appoint a Board of Studies and may also appoint other Boards or Committees for advice and assistance regarding the objects or functions of the Board or certain specific matters approved as the Board may deem appropriate.
- (b) The Board of Studies shall act with regard to archaeological studies of students, the conduct of examinations and all other matters related thereto as specified in Section 3(a), (b) and (e) of the Act. The President of the Council shall be an ex-officio member of the Board of Studies.
- (c) The Board may assign to the Board of Studies the conduct of courses for qualifying examinations for eligibility for membership of the Council and the conduct of such examinations.
24. The Council may award gold medals annually in recognition of distinguished services rendered during the respective years for the advancement of Archaeology.

SCHEDULE 1

MEMBERSHIP FEES AND CHARGES

<i>Membership</i>	<i>Admission Fee</i>	<i>Annual Membership Fee</i>
Fellow Member	Rs. 750.00	Rs. 750.00
Member	Rs. 500.00	Rs. 500.00
Associate Member	Rs. 250.00	Rs. 250.00
Registered Member	Rs. 100.00	Rs. 100.00
Student Member	Rs. 50.00	Rs. 50.00

SCHEDULE 2

QUALIFICATIONS FOR MEMBERSHIP

- Qualifications for registration as a Fellow Member of Sri Lanka Council of Archaeology:
 - Possessed membership of the Council for over ten years.
- Qualifications for registration as a Member of Sri Lanka Council of Archaeology:

- (a) A postgraduate Degree in Archaeology from a recognized university or an institute and two years' experience as a professional Archaeologist in a suitable state or private institute under the supervision of a Fellow Member. Experience may be obtained before or after the acquisition of the postgraduate degree.
3. Qualifications for registration as an Associate Member of the Sri Lanka Council of Archaeologists:
- (a) A special degree in Archaeology and five years' service as a registered member;
or
(b) A Postgraduate Degree in Archaeology;
or
(c) A pass in the professional examination conducted by the Sri Lanka Council of Archaeologists
4. Qualification for registration as a registered Member of the Sri Lanka Council of Archaeologists:
- (a) Five years' service as a student member;
or
(b) Ten years' experience at a professional or technical level in a suitable state or private institute under the supervision of a Fellow Member or a Member
5. Qualifications for registration as a student member of the Sri Lanka Council of Archaeologists:
- (a) Admission for a special Degree Course in Archaeology or a general degree course with Archaeology as a subject;
or
(b) Admission for a Postgraduate Degree course in Archaeology

The study of Archaeology is identified under different names and analyses by certain institutes or traditions. The acceptance of such optional names or analyses being made analogous to Archaeology will be as interpreted by the Board of Governors based on the merit of individual applications.

Working at a technical level under a professional Archaeologist means the engagement in planning, planimetry, photography, analysis of finds and in other similar activities belonging to the field of Archaeology as accepted by the Council from time to time.